

Our Ref: F2021/003

CONFIDENTIAL

Dr Richard McLean
rich@richmclean.com.au

Dear Dr McLean

Freedom of information request – notice of decision

Thank you for your email to the Mental Health Complaints Commissioner (MHCC) received on 1 March 2021 requesting access to documents under the *Freedom of Information Act* 1982 (FOI Act).

You requested access to documents held by MHCC. The scope of your request was for all records held by MHCC relating to yourself, including records that refer to Dr Whitaker or Dr Cooper.

I am the officer authorised under section 26 of the FOI Act to make decisions in relation to FOI requests received by the MHCC.

Decision

A search of the MHCC case management system identified 60 documents which fall within the scope of the request.

I assessed the documents in accordance with the FOI Act and decided to:

- grant access to 5 documents as administrative release outside of the FOI Act as they are documents you sent to us
- grant access to 1 document in full under the FOI Act
- grant partial access to 52 documents with exempt information redacted
- exempt access to 2 documents as they are internal working documents.

Please note that we have removed duplicate documents where practicable.

Exemptions

Section 33(1) – Documents affecting personal privacy

Section 33(1) of the FOI Act provides that a document is exempt if its release would involve the unreasonable disclosure of information relating to the personal affairs of any person. Section 33(9) defines personal affairs information to include information that identifies any person or discloses their address or location, or from which any person's identity, address or location can reasonably be determined.

There are 52 documents that include the names of MHCC staff and other individuals which is personal information about those individuals. I have decided that disclosure of personal information about those individuals would be unreasonable. I have taken into account a number of factors, including the nature of the information in question and the circumstances in which the MHCC came to possess the information. We are also aware that you have uploaded correspondence with the names of MHCC staff to Facebook and that you have advised that you have recorded discussions with MHCC staff. Accordingly, I have applied this exemption to 52 documents in part.

Section 30(1) - Internal working documents

Section 30(1) of the FOI Act allows an agency to not provide documents that are 'internal working documents'. The FOI Act defines these as documents 'that would disclose matter in the nature of opinion, advice, recommendation... or consultation or deliberation ...in the course of, or for the purpose of, the deliberative processes involved in the functions of any agency or Minister of the government', and where disclosure would be contrary to the public interest.

I have decided that this exemption applies to 2 documents held by the MHCC. These two documents are internal correspondence. These documents record opinions, advice, recommendations, consultation or deliberation by officers of the MHCC and staff of other agencies. It would be contrary to the public interest to release these documents because the MHCC would not be able to perform our functions efficiently and effectively if staff are unable to communicate in confidence, or are concerned about recording these communications. Accordingly, the exemption has been applied to 2 documents in full.

Review rights

You have the right to seek a review of my decision by the Victorian Information Commissioner under section 49A(1)(a) of the FOI Act. An application for review must be lodged within 28 days of the date you receive this notice of decision. More information about applying for review by the Information Commissioner can be found at www.ovic.vic.gov.au/freedom-of-information or by calling 1300 006 842.

Fees and charges

I have decided to waive access charges.

Documents enclosed

We are providing the documents to you electronically by email. Please advise if you would like a hard copy of the documents to be sent to you,

If you have any questions about this letter, please contact me on 1800 246 054 or by email on PrivacyFOI@mhcc.vic.gov.au or help@mhcc.vic.gov.au.

Yours sincerely

I. Anton.

I. Anton
Principal Legal Officer
Freedom of Information Officer

1 / 4 / 2021

Enc. Released documents